A PROPOSAL FOR THE CONSIDERATION OF THE GOVERNMENT OF INDIA

Proof of Nationality for Every Citizen of India

Proposal for a Citizen Proof-of-Nationality Document
(the “e-Card”)

Supported by legal, factual and comparative research

To	The Secretary, Ministry of Home Affairs, Government of India, North Block, New Delhi – 110001
Subject	Introduction of a single, verifiable document to establish Indian nationality (e-Card), with a registry-based design, appeal safeguards and a pilot
Submitted by	
Designation / Institution	
Contact (e-mail / phone)	
Date of submission	
Reference no.	

This is a citizen’s proposal submitted for consideration. It is not an official policy document. Figures and statements are drawn from the public sources listed in Annexure A.

Contents

Summary for Decision-Makers . . . 3

1. Introduction . . . 4

1.1 The gap . . . 4

1.2 Objective . . . 4

2. Proposed Application Procedure . . . 4

3. Why Aadhaar and Similar Documents Cannot Prove Nationality . . . 5

3.1 Legal position . . . 5

3.2 Who can hold an Aadhaar . . . 5

3.3 Documented misuse of identity documents . . . 6

3.4 The Rohingya: what the record shows . . . 6

3.5 What is not established . . . 7

3.6 Security concerns . . . 7

4. How the e-Card Addresses These Risks . . . 7

4.1 The central question . . . 7

4.2 Three generations must agree . . . 7

4.3 Screening for suspicious patterns . . . 7

4.4 Cross-checking other documents through Aadhaar . . . 8

4.5 What changes with the e-Card . . . 9

5. Precedents and Cautions . . . 9

5.1 Assam National Register of Citizens (2019) . . . 9

5.2 The earlier national identity card pilot . . . 9

5.3 Birth registration is now near-universal . . . 9

6. Recommended Design and Roadmap . . . 10

7. Conclusion and Request . . . 11

Annexure A: Sources Consulted . . . 12

Summary for Decision-Makers

Purpose

This proposal asks the Government of India to consider introducing one verifiable document, the e-Card, that establishes a person's Indian nationality. Today a citizen can show who they are (Aadhaar) and where they live (domicile certificate), but there is no single document accepted as conclusive proof of citizenship.

Key points

- **The need is real.** Citizenship is governed by the Citizenship Act, 1955. In the Lok Sabha on 12 August 2025 the Ministry of Home Affairs referred only to that Act and did not specify which documents prove citizenship. Courts have held that Aadhaar, voter ID and PAN are not proof of citizenship.
- **Aadhaar cannot serve as proof of nationality.** Section 9 of the Aadhaar Act, 2016, UIDAI and the Supreme Court (August 2025) say so. Aadhaar is issued to any resident of 182 days or more, including legally resident foreign nationals.
- **Misuse of identity documents is documented.** The Government has told Parliament that some Rohingya obtained Aadhaar, PAN and voter cards by fraud, and that 2,399 Bangladeshi nationals were intercepted at border check posts over five years with fraudulently obtained Indian documents. About 40,955 fraudulent Aadhaar numbers had been cancelled by August 2020. The Government states that no accurate national count of illegal migrants exists.
- **The e-Card is designed to be harder to obtain by fraud,** because it rests on independent records across three generations, a risk-flag screen and a registrar's decision. No system can be guaranteed fraud-proof, and this proposal does not claim that.
- **Identical issue dates across a family's documents are used only as a risk flag,** never as proof. Ordinary families often share dates: about 75% of all Aadhaar numbers were issued in five years (2012-13 to 2016-17), and a ration card is issued per household.
- **A legal basis exists.** Section 14A of the Citizenship Act (Act 6 of 2004) provides for compulsory registration of citizens and national identity cards. On 5 August 2025 the Ministry told the Lok Sabha that the Act mandates this; it has not been implemented nationwide.

Decisions requested

1. Approve in principle the development of the e-Card as a registry-based citizenship credential under Section 14A of the Citizenship Act, 1955.

2. Constitute an expert committee (Ministry of Home Affairs, Registrar General of India, UIDAI, Election Commission, legal and privacy experts) to settle evidence rules, the appeal process and data protection.

3. Authorise a time-bound pilot in a small number of districts, with error, exclusion and cost data published before any wider rollout.

1. Introduction

1.1 The gap

Every citizen is entitled to be recognised as one, yet India has no single document that proves it. Aadhaar proves identity. A domicile certificate shows residence in a State. Neither is a proof of nationality. Citizenship is acquired by birth, descent, registration, naturalisation or incorporation of territory under the Citizenship Act, 1955, and most citizens hold no certificate of it.

The courts and the Government have confirmed the gap. The Supreme Court (August 2025) accepted that Aadhaar is not conclusive proof of citizenship. The Bombay High Court (August 2025) and the Calcutta High Court have held that Aadhaar, voter ID and PAN are not proof of citizenship. The Ministry of External Affairs has been reported (June 2026) as stating that a passport is a travel document, not proof of citizenship. Under the Immigration and Foreigners Act, 2025 (in force from 1 September 2025, replacing the Foreigners Act, 1946), the burden of proving that one is not a foreigner remains on the individual. A person who cannot produce a recognised proof therefore carries the risk.

1.2 Objective

The objective is a single document, the e-Card, issued to every citizen as proof of nationality, that is difficult to forge, quick to verify, fair to genuine citizens who lack paperwork, and backed by a clear legal basis, appeal rights and privacy safeguards.

2. Proposed Application Procedure

1. The applicant goes to the nearest Jan Seva Kendra, as for Aadhaar.
2. The centre verifies the applicant’s Aadhaar, both parents’ Aadhaar and the Aadhaar of at least 2 of the applicant’s 4 grandparents.
3. Aadhaar is used as the common key because almost every adult has one, which lets linked family records be retrieved and cross-checked. The Aadhaar number itself carries no information about nationality; nationality is established by the checks in Section 4.
4. After verification the e-Card is sent to the applicant’s nearest Jan Seva Kendra, and the applicant is informed by call and SMS to collect it.

Every check in the proposed e-Card flow rests on Aadhaar

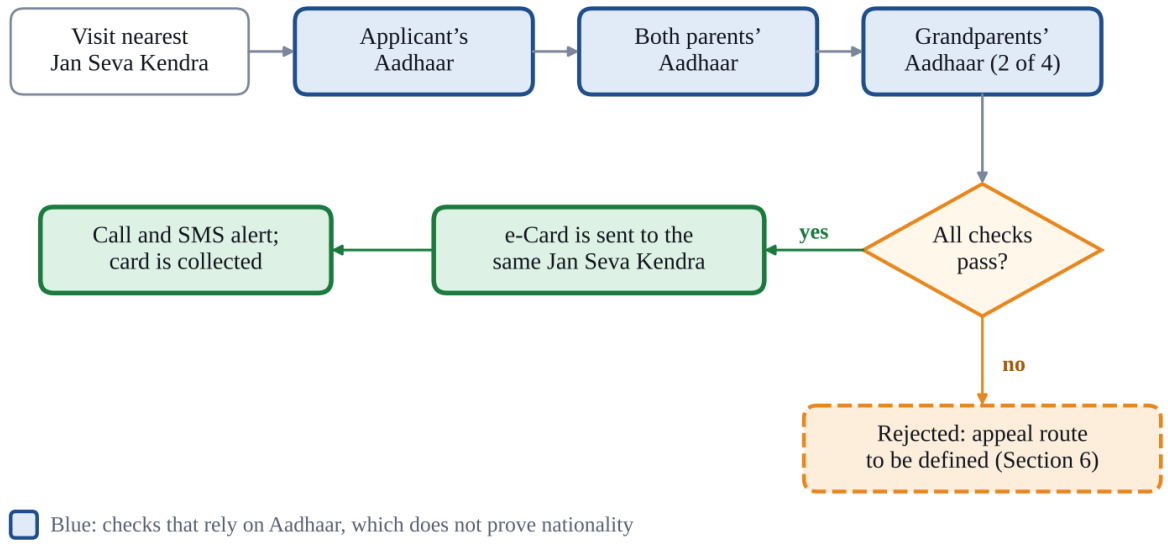


Figure 1. Application flow as originally proposed. The appeal route and the added verification steps are set out in Sections 4 and 6.

3. Why Aadhaar and Similar Documents Cannot Prove Nationality

3.1 Legal position

Section 9 of the Aadhaar Act, 2016 states that an Aadhaar number does not by itself confer or prove citizenship or domicile. The Supreme Court upheld Aadhaar in 2018 as a welfare-delivery tool while leaving that limit intact. On 12 August 2025, in the Bihar Special Intensive Revision (SIR) case, it agreed with the Election Commission that Aadhaar is proof of identity and not conclusive proof of citizenship. On 16 June 2026 the Court issued notice on a petition (Ashwini Kumar Upadhyay v. Union of India) seeking to confine Aadhaar to identity use. UIDAI's memorandum of 22 August 2023 is to the same effect.

3.2 Who can hold an Aadhaar

Aadhaar is available to any resident who has stayed in India for 182 days or more in the preceding 12 months. This includes legally resident foreign nationals, such as OCI card holders, nationals of Nepal and Bhutan, and others with a valid passport and visa. At enrolment, verification is based on the documents the applicant presents; UIDAI performs a quality check on every enrolment and reports having blacklisted more than 50,000 enrolment operators for violations. Because Aadhaar is open to residents, and not only to citizens, it cannot by design prove nationality.

No widely held document proves nationality conclusively

What each document is designed to prove (author's summary of Section 3)

	Identity	Residence	Date and place of birth	Nationality
Aadhaar	Yes	Partly	No	No
Domicile certificate	No	Yes	No	No
Birth certificate	Partly	No	Yes	Partly
Voter ID	Yes	Partly	Partly	Partly
Passport	Yes	Partly	Yes	Partly
Citizenship certificate	Partly	No	No	Yes
e-Card (proposed)	Partly	No	No	Yes

Passport: supporting evidence only; MEA has described it as a travel document. Citizenship certificate: held by few citizens.

Figure 2. What each common document is designed to prove. The nationality column shows the gap the e-Card is meant to fill. Author's summary of the legal position in Sections 1 and 3.

3.3 Documented misuse of identity documents

- The Government told Parliament that instances of some Rohingya obtaining Aadhaar, PAN and voter cards through fraudulent means had been reported, and that no accurate data exist on the number of illegal migrants because they enter clandestinely.
- The Ministry of Home Affairs told the Lok Sabha that 2,399 Bangladeshi nationals were intercepted at international border check posts over a five-year period with fraudulently obtained Indian documents.
- The Ministry has instructed States and Union Territories to ensure that no Aadhaar is issued to illegal migrants, to cancel fraudulently obtained voter cards, driving licences and ration cards, and to share particulars with UIDAI for action.
- The Government reported that 40,955 fraudulent Aadhaar numbers had been discovered and cancelled as of 31 August 2020. Against about 129 crore numbers generated by March 2021, that is roughly 0.003%. The cases are rare in proportion but serious in effect.

3.4 The Rohingya: what the record shows

The Rohingya are a minority from Rakhine State in Myanmar. They fled Myanmar in repeated waves, mainly to Bangladesh: about 200,000 in 1978, about 250,000 in 1991-92, about 120,000 in 2012, and then in 2016 and, on the largest scale, from August 2017. Most of those who fled in 1978 and 1991-92 returned within a few years. These waves are documented as movements into Bangladesh; they are not records of arrivals in India, and no official data were found on how many reached India in each wave.

- **Numbers.** The Government's estimate (2017) is about 40,000 Rohingya in India; some sources consider this high. UNHCR had registered about 18,900 in India by August 2020.
- **Where they live.** Mainly Jammu, Delhi and the National Capital Region, Hyderabad, Haryana, Uttar Pradesh and Rajasthan. The Government told Parliament that illegal Rohingya were staying in 12 States and Union Territories.

- **Legal status.** India is not a party to the 1951 Refugee Convention. The Government treats Rohingya who entered without valid papers as illegal migrants. On 8 May 2025 the Supreme Court declined to halt deportation, held that persons found to be foreigners are to be dealt with under the law, and noted that Article 21 applies to all persons while the right to reside in India (Article 19(1)(e)) belongs to citizens. Rohingya are not citizens and have no right to vote.

3.5 What is not established

Political leaders have alleged that local political parties helped illegal migrants obtain identity documents and appear on electoral rolls; the parties named deny this. No court finding or official count supporting these allegations was located, and the Election Commission had not published a count of foreign nationals found on the rolls after its SIR exercises. This proposal therefore does not rely on those allegations and does not state them as fact. Its case rests on the legal position and the documented cases in Section 3.3.

3.6 Security concerns

Security agencies have documented forged identity documents in terror cases: Jammu and Kashmir Police (April 2026) described a Lashkar-e-Taiba logistics network that used forged PAN cards and passports, and in earlier cases police recovered Aadhaar cards from arrested suspected militants. The scale of terrorist violence should be stated precisely. In Jammu and Kashmir the Ministry of Home Affairs reports 344 civilians killed in terror-related incidents from 2014 to 2024, against 1,769 in 2004-2014. The South Asia Terrorism Portal recorded 12 civilian deaths in 2023, 31 in 2024 and 28 in 2025, the last including the Pahalgam attack of 22 April 2025 (26 killed). The National Investigation Agency’s chargesheet names the three Pahalgam attackers as Pakistani nationals; the public record reviewed does not show that they used Indian identity documents. The risk from forged documents is real, but the figures do not support statements of thousands of deaths in recent years: more than 1,000 civilians were killed in the worst year, 2001.

4. How the e-Card Addresses These Risks

4.1 The central question

If people with fake documents can also apply for the e-Card, will the position remain the same? The answer is that it need not, provided the e-Card is decided on independent evidence and not on a single card. It cannot be claimed that no ineligible person will ever obtain one. The aim is to make fraud substantially harder and easier to detect, and to give genuine citizens a credential they can rely on.

4.2 Three generations must agree

An applicant must be linked to parents and grandparents whose records exist in independent systems (for example birth and death registers, electoral rolls and school or land records) and must agree with one another. Forging one card is easier than fabricating a consistent set of linked records across several people, registers and years. Where a grandparent is deceased, the death register entry and other records can stand in for an Aadhaar card.

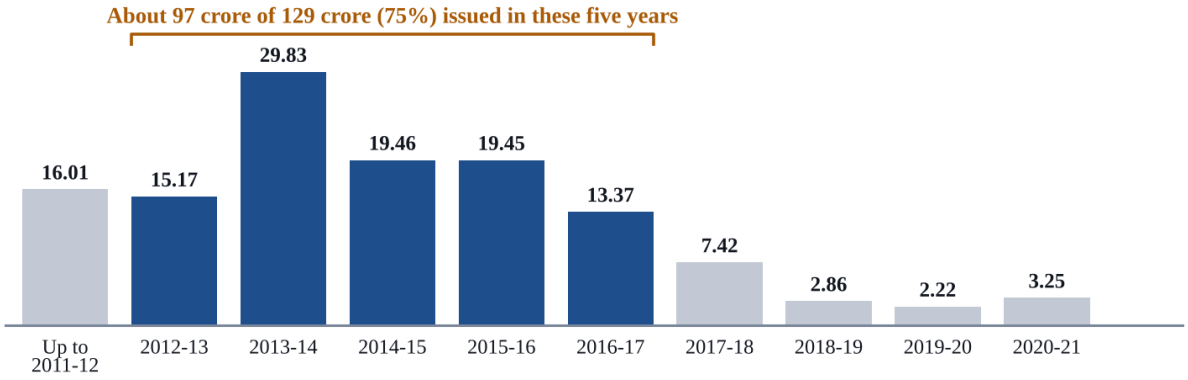
4.3 Screening for suspicious patterns

The original proposal suggests that families which obtained their Aadhaar, voter ID and ration cards all on the same dates, while ordinary families show long gaps, can be identified. The pattern is worth examining, but the evidence shows it cannot be used as proof:

- **Aadhaar is recent and was issued in a short window.** The first Aadhaar was issued in 2010. By April 2016, 100 crore had been generated, and by January 2017 over 99% of adults were covered. About 97 crore of 129 crore numbers (75%) were issued in five years (Figure 3). Parents and grandparents of ordinary families therefore enrolled in the same period, so their Aadhaar dates are naturally close.
- **Ration cards are issued per household.** One card is issued per family, in the name of the head of household, listing all members. All members share a single issue date by design.
- **Families enrol together.** UIDAI accepts a family entitlement document such as a ration card as proof of identity and address for family members, and enrolment drives and school camps cover whole families on one day.

Most Aadhaar numbers were issued in just five years, 2012-13 to 2016-17

Aadhaar numbers generated each year, in crore



Source: Report No. 24 of 2021 of the Comptroller and Auditor General (Aadhaar generation, to March 2021). Totals as reported; sums rounded.

Figure 3. Aadhaar numbers generated per year. Clusters of dates within families are common and cannot, alone, identify an illegal migrant.

The e-Card therefore treats date clustering only as one **risk flag** among several, which sends the application for secondary checks (a field visit and additional evidence) and never causes automatic rejection. A stronger signal is the **document history**: long-term residents usually hold records created at different times in different systems, such as birth registration, school and land records and electoral rolls from before 2010, whereas a trail that starts all at once in recent years warrants closer review. Recent migrants within India, the poor and women who moved after marriage may also lack older records, so a flag is a prompt for review, not a finding.

4.4 Cross-checking other documents through Aadhaar

Aadhaar can be linked to a person's PAN, bank account, mobile number and ration card, and Aadhaar seeding of ration cards is required under the National Food Security Act framework. These linkages let a registrar check that names, dates of birth and addresses agree across documents. Two limits apply. Linking Aadhaar with the voter ID is voluntary under the Election Laws (Amendment) Act, 2021, so it cannot be assumed. And any sharing of such data must have a clear legal basis and respect the Supreme Court's privacy judgments, with data collected only as needed.

4.5 What changes with the e-Card

Aspect	Today	With the e-Card
Proof of nationality	No single accepted document	One signed credential
Checking for fraud	Document by document, mostly at the counter	Cross-checks across generations and registers, with risk flags
Decision	Counter operator or ad hoc officer	Registrar, with appeal
Burden on the citizen	Assemble a bundle of papers each time	Present one verifiable card

5. Precedents and Cautions

5.1 Assam National Register of Citizens (2019)

Assam's NRC is the closest large-scale test of lineage verification. Applicants had to trace descent to persons on the 1951 records or electoral rolls up to 24 March 1971. Of 3,30,27,661 applicants (about 3.3 crore), 3,11,21,004 were included and 19,06,657 (about 19 lakh) excluded, including some who did not apply. The exercise cost about Rs 1,220 crore and involved about 52,000 officials, and its outcome was disputed from both sides: some leaders said too many had been included and sought re-verification, while others said genuine Indians were left out. **Lineage verification at scale is slow, expensive and contested.**

Assam NRC: 3.3 crore applied, about 5.8% were excluded

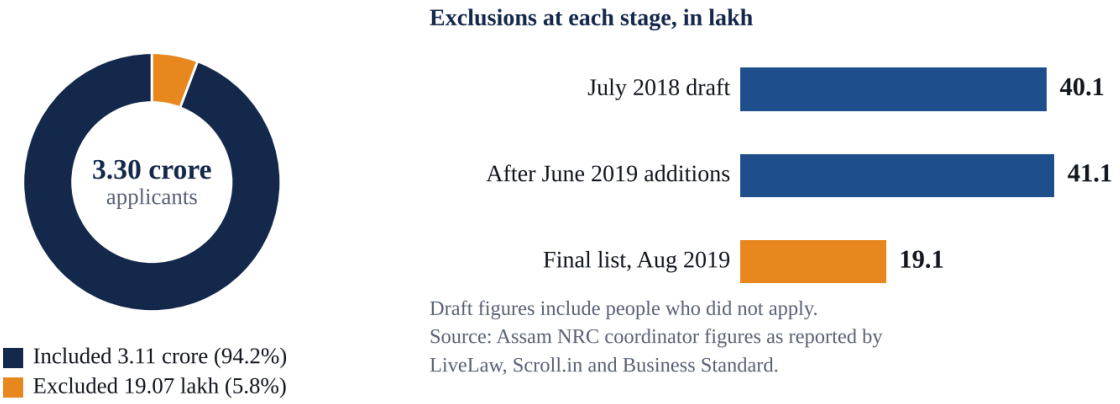


Figure 4. Assam NRC outcome: share of applicants excluded, and exclusions at each stage.

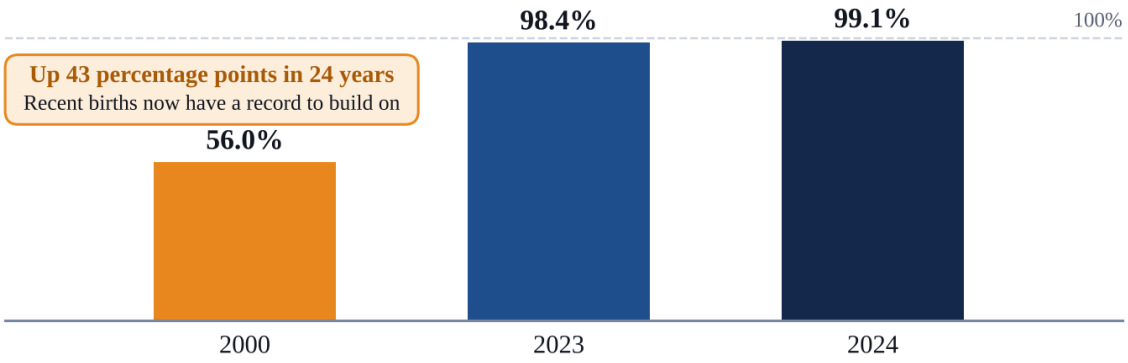
5.2 The earlier national identity card pilot

Under Section 14A and the Citizenship Rules, 2003, a pilot Multi-purpose National Identity Card project covered a population of 30.96 lakh in selected areas. One review reports that only about 12 lakh identity cards had been issued by March 2009, roughly 40% of the pilot population. A nationwide card should therefore be preceded by a pilot, with published results.

5.3 Birth registration is now near-universal

Registration of births rose from about 56% in 2000 to 98.4% in 2023 and 99.1% in 2024 (Civil Registration System). For people born recently, a verified birth record can be the foundation of the e-Card. For older generations such records often do not exist, which is why the three-generation requirement needs flexible alternatives.

Birth registration in India rose from about 56% to 99%



Share of births registered. Source: Civil Registration System reports (2023, 2024), via Drishti IAS and Outlook India.

Figure 5. Share of births registered in India, from Civil Registration System reports.

6. Recommended Design and Roadmap

Recommended design: evidence, cross-checks, a risk flag and a registrar's decision

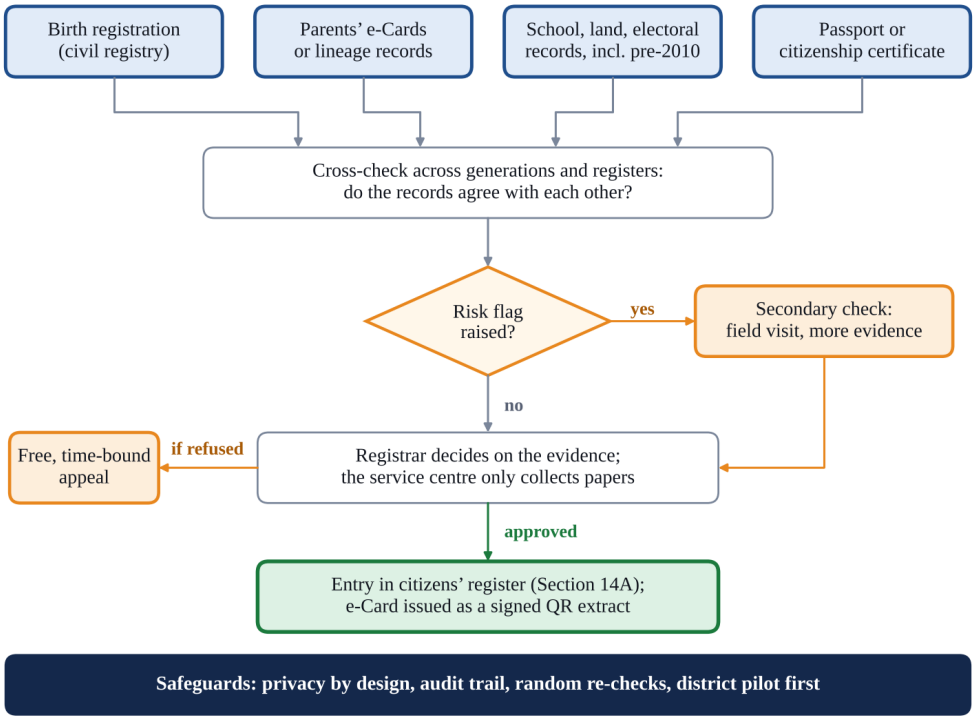


Figure 6. Recommended design: several evidence types feed a cross-check and a risk flag, and a registrar decides, with appeal and a signed card.

1. **Build on a register, not on Aadhaar alone.** The e-Card is an extract from a verified citizens' register (Section 14A and the Civil Registration System); Aadhaar is used to match identity and retrieve linked records.
2. **Two tracks.** Children born after a set date receive the card with birth registration if a parent holds one. The existing population is verified using several evidence types, not Aadhaar alone.
3. **Flexible lineage evidence** in place of a fixed grandparent rule, including death and birth register entries where an Aadhaar does not exist.

4. **Inclusion routes** for citizens by registration and naturalisation, using their certificates.
5. **Registrar decides.** Service centres collect papers; a trained registrar decides, with audit trails, random re-verification and penalties for official fraud.
6. **Fair process.** A free, time-bound appeal, legal aid, and no treatment of an applicant as a non-citizen while the application is pending.
7. **Privacy.** Collect only what is needed, use a digitally signed QR card verifiable without querying a central database each time, and set up independent oversight.
8. **Legal effect.** Provide by law that the e-Card is strong evidence (a rebuttable presumption) of citizenship.

Phase	Main activities	Gate before next phase
1. Foundation	Legal framework under Section 14A; evidence rules; appeal and privacy design; expert committee	Approved rules and data-protection design
2. District pilot	Issue cards in a few districts of different types; independent audit	Published error, exclusion and cost data
3. Review and scale	Fix problems found; extend State by State with the same safeguards	Review of pilot results and grievance outcomes

7. Conclusion and Request

A clear, trusted proof of Indian citizenship is a reasonable aim, is already contemplated by law, and would serve both national security and genuine citizens. Aadhaar cannot provide it, because it is open to all residents and is not a citizenship document. An e-Card decided on independent, multi-generation evidence, with risk flags, a registrar's decision, appeal rights and privacy safeguards, would be a stronger and fairer instrument than any single card. It will not make fraud impossible, but it can make it much harder to carry out and much easier to detect.

It is respectfully requested that the Government consider the decisions set out in the Summary for Decision-Makers: approval in principle, an expert committee, and a time-bound district pilot.

Place: _____ Signature: _____

Date: _____ Name: _____

Annexure A: Sources Consulted

- Citizenship Act, 1955; Citizenship (Amendment) Act, 2003 (Act 6 of 2004, assent 7 January 2004), Section 14A; Citizenship (Registration of Citizens and Issue of National Identity Cards) Rules, 2003 (Ministry of Home Affairs notification, 10 December 2003).
- Aadhaar Act, 2016, Section 9; Supreme Court on Aadhaar and the Bihar SIR, 12 August 2025; notice of 16 June 2026 in Ashwini Kumar Upadhyay v. Union of India (LiveLaw; Free Press Journal; Drishti IAS).
- UIDAI enrolment eligibility, supporting documents and statements on operators and enrolment quality (uidai.gov.in; Press Information Bureau); Lok Sabha and Rajya Sabha replies cited therein.
- Ministry of Home Affairs replies in the Lok Sabha: 12 August 2025 (documents proving citizenship) and 5 August 2025 (national identity cards) as reported by The Tribune, The Wire and Scroll.in; 16 July 2019 (instructions to States on illegal migrants); reply on 2,399 Bangladeshi nationals (Sentinel Assam; Dhaka Tribune).
- Rohingya: waves of displacement (The Daily Star; ACAPS historical review; Doctors Without Borders; Burma Library); numbers and locations in India (ThePrint; The Wire; HRDC); Supreme Court, 8 May 2025 (LiveLaw; Vision IAS; Drishti IAS).
- Immigration and Foreigners Act, 2025: in force 1 September 2025 (Vision IAS; PRS Legislative Research; Scroll.in).
- Aadhaar generation by year: Comptroller and Auditor General, Report No. 24 of 2021, chapter 3 (saiindia.gov.in); Press Information Bureau, 27 January 2017; UIDAI statements on enrolment progress.
- Fraudulent Aadhaar numbers cancelled as of 31 August 2020 (Medianama, citing MeitY).
- Ration card, head-of-household rules and Aadhaar seeding (state food department guidelines; UIDAI FAQ on family entitlement documents); Election Laws (Amendment) Act, 2021 on voluntary Aadhaar-voter ID linking (Tribune; The Week).
- Terrorism data for Jammu and Kashmir: South Asia Terrorism Portal as reported by The Wire and ETV Bharat; Ministry of Home Affairs figures (Tribune); NIA Pahalgam chargesheet, 15 December 2025 (Business Today; Kashmir Life; The Week); Jammu and Kashmir Police on forged documents, April 2026 (ThePrint; Deccan Herald).
- Assam NRC figures and cost (LiveLaw; The News Minute; Business Standard; Scroll.in); earlier national identity card pilot (Strategic and Policy Research Forum, sprf.in).
- Birth registration: Civil Registration System reports, 2023 and 2024 (Drishti IAS; Outlook India; Vision IAS).
- Passport and other documents not conclusive: Outlook India (MEA, June 2026); Scroll.in (Bombay High Court, August 2025); Outlook India (Calcutta High Court).

Note on figures: lakh = 100,000; crore = 10 million. Allegations by political parties are identified as allegations. The classification in Figure 2 is the author’s summary of the legal position.